IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Collective Bargaining Agreement set out in the Schedule, registered in terms of section 79 of the Labour Act [*Chapter 28:01*].

SCHEDULE

NATIONAL EMPLOYMENT COUNCIL FOR THE TOBACCO INDUSTRY

COLLECTIVE BARGAINING AGREEMENT: CIGARETTE AND TOBACCO MANUFACTURING INDUSTRY

Amendment to the Principal Agreement

This further agreement made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*] between the Cigarette and Tobacco Manufacturing Employers' Association (hereinafter referred to as "the employers" or the "employers association"), of the one part, and the Zimbabwe Tobacco Industrial Workers' Union (hereinafter referred to as "the employees" or the "trade union"), of the other part, being parties to the National Employment Council for the Tobacco Industry, to amend the Collective Bargaining Agreement: Cigarette and Tobacco Manufacturing Industry, 2017, published in Statutory Instrument 51 of 2017, as amended (hereinafter referred to as "the capping agreement") shall be read as one with the capping agreement.

Now, therefore, the following is agreed:

This further agreement shall be deemed to have come into effect on 23rd June, 2022.

Clause 2 is deleted and replaced with the following;

"Fixed term contracts

2.—

(a) for the purposes of this clause, "continuous service" shall be defined as any period of service on a fixed-term contract

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or a contract that specifies start and end date, entered into with the same employer, which is not broken by fifteen (15) or more calendar days;

(b) a fixed term contract shall be deemed to be a contract of employment without limitation of time upon the expiry of two years of continuous service.".

Declaration

The employer's association and the trade union, having arrived at the agreement set forth above, the undersigned hereby declare that the foregoing is the agreement arrived at and affix their signatures hereto.

Signed at Harare this 23rd day of June, 2022.

A. S. CHINYAVADA,
Chairperson of the Employers Association.

E. MARIRO,
General Secretary ZTIWU.

T. ZIMONDI,
Chairman of the Council.